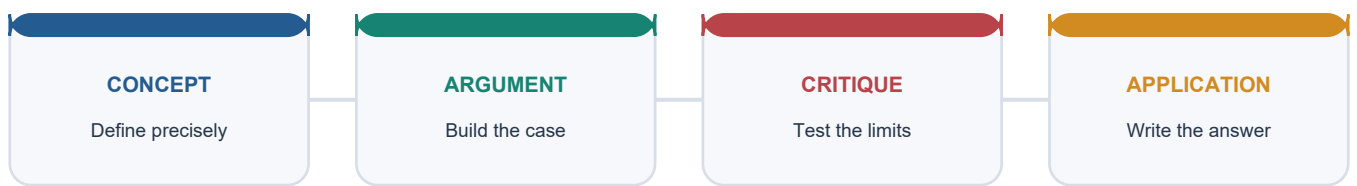


SOLVED PRACTICE WORKBOOK

Sovereignty - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

Sovereignty - Solved Practice Workbook	3
What this workbook contains	3
How to use it	3
BASIC MCQS / REMEDIATION	4
32 original MCQs - 24 core diagnostics and 8 remedial error-targeting drills	4
PYQS AND ANSWER PRACTICE	20
Practice status and source discipline - read once, applies to every solution below	20
ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS	32

Sovereignty - Solved Practice Workbook

Standalone workbook. It reproduces the complete practice apparatus of the Sovereignty learning package and can be worked without the teaching sessions. Syllabus, verbatim: *Sovereignty : Austin, Bodin, Laski, Kautilya*. - UPSC Philosophy Paper II, Section A, item 2. □ Four thinkers are printed and only four; Hobbes, Rousseau, Kelsen and Hart appear as clearly-marked bridges because owned previous-year parts require them, while Locke, Hegel, Dworkin, rights, political obligation and the forms of democracy belong to later owners and are routed rather than developed. **Evidence discipline:** FACT: doctrine on which the standard sources converge · ANALYSIS: analytical reconstruction for exam use · CAUTION: a live scholarly dispute. Model answers are independent learner practice and are never official UPSC keys; UPSC publishes no descriptive model answer for Philosophy Paper II.

Terminology and citation rule: the English concept leads and the technical term follows immediately in parentheses - *supreme, final and authoritative power within a political community (sovereignty)*, *supremacy inside the state (internal sovereignty)*, *independence in the society of states (external sovereignty)*, *competence to make law (legal sovereignty)*, *the real power that shapes the law-maker (political sovereignty)*, *lawful in title (de jure)*, *actually obeyed (de facto)*, *vested in an office (titular)*, *exercised by those who really govern (actual)*, *the people as source of public authority (popular sovereignty)*, *collective self-determination (national sovereignty)*, *freed from the ordinary positive laws (legibus solutus)*, *the fundamental laws of the realm (leges imperii)*, *an identifiable person or body (determinate human superior)*, *regular compliance by the bulk (habitual obedience)*, *an order backed by an evil (command and sanction)*, *the presupposed apex of validity (basic norm, Grundnorm)*, *the accepted official test of law (rule of recognition)*, *the participant's attitude to a rule (internal point of view)*, *the seven-limbed state (saptāṅga)*, *the ruler (svāmī)*, *ministers (amātya)*, *territory with its people (janapada)*, *fortified defence (durga)*, *treasury (kośa)*, *coercive force (daṇḍa)*, *ally (mitra)*, *calibrated coercion (daṇḍanīti)*, *the circle of states (maṇḍala)*, *the six-fold policy (ṣāḍguṇya)*, *security and welfare (yogakṣema)*, *the happiness of subjects (prajā-sukha)*. Provenance is examinable: **Kelsen, General Theory of Law and State, first English edition 1945; Hart, The Concept of Law, 1961; Kesavananda Bharati v. State of Kerala, Supreme Court judgment, 1973.** No page, chapter, edition or quotation is attached to any of them.

What this workbook contains

Component	Count
Original diagnostic MCQs - 24 core plus 8 remedial drills	32
Question-specific option explanations	128
Unique examiner traps	32
Directly owned verified PYQs solved in full, 2018-2025	11
Original solved Mains models - two each at 10, 15 and 20 marks	6

How to use it

1. Attempt the twenty-four core MCQs without notes, then read every option explanation, including those for the options you rejected. The key sequence is **unpatterned** - each answer was fixed independently - so no cycle can be guessed, and option lengths are matched so that the answer cannot be spotted by shape.
2. Work the eight remedial drills only after the core set. They target the date swap, the merged-critique error, the Indian jurisdiction error, the globalisation slogan, the Bodin-Hobbes conflation, the anarchist misreading of Laski, the reduction of Kautilya to strategy, and the ownership breaches that cost marks every year on this clause.
3. Attempt each previous-year part under time before reading its solution. **Decide the axis from the stem first:** five owned parts are Kautilya parts, two are Laski parts, two are Bodin parts, two are Austin parts, and one asks about the doctrine as such under globalisation.
4. Write the six original models in full. Two are 10-mark, two 15-mark and two 20-mark, and each sits inside the declared word band - **10 marks about 150 to 220 words, 15 marks about 250 to 330, 20 marks about 330 to 400.**

5. Check every answer against the traps: Austin's sovereign called "the state", Bodin written as Hobbes, Laski called an anarchist, Kautilya reduced to the circle of states, Kelsen dated to 1961, the *Grundnorm* treated as a moral standard, India described as parliamentary sovereignty, the 2025 printed line quoted as Kautilya's own words, and any script that imports the social contract, Dworkin's hard cases, or the institutional forms of democracy from another owner.

BASIC MCQS / REMEDIATION

32 original MCQs - 24 core diagnostics and 8 remedial error-targeting drills

Answer placement: each correct option was fixed **independently**, so the key sequence is unpatterned rather than rotated and no cycle such as ABCD - or its reverse - can be used to guess. Options are matched for length, specificity, grammar and visible formatting so that the answer cannot be spotted by shape alone. Every question carries four question-specific option explanations and one unique examiner trap.

Coverage: the twenty-four core questions run across the whole printed clause - *Sovereignty : Austin, Bodin, Laski, Kautilya* - together with the concept of final authority and its distinction from force, the internal/external pair and the five classical attributes with their qualifications, legal against political sovereignty, the de jure/de facto and titular/actual pairs and the office-against-obedience divergence they expose between Bodin and Austin, popular and national sovereignty with the Rousseau bridge, Bodin's absolute-and-perpetual definition, his three limits and his indivisibility thesis, Austin's three-part definition and the command-sanction formula, the reason the five Austinian attributes are forced rather than chosen, the federalism, international-law and customary-law criticisms and the relocation pattern they share, the two-level democracy verdict, the jurisdiction control on parliamentary sovereignty against constitutional supremacy, Kelsen's hierarchy of norms and presupposed basic norm together with the efficacy problem, Hart's three defects and three secondary rules and the being-obliged/having-an-obligation distinction, Laski's pluralism and his threefold rejection, Kautilya's seven-limbed state, calibrated coercion and the circle of states with the 2025 provenance control, and the four mechanisms by which globalisation reconfigures rather than abolishes sovereignty. The eight remedial drills attack the errors that cost marks every year on this clause: swapping the Kelsen 1945 and Hart 1961 dates, merging three incompatible dissolutions of the personal sovereign into one critique, calling India a system of parliamentary sovereignty or calling its judiciary sovereign, writing that sovereignty disappears under globalisation, conflating Bodin with Hobbes, calling Laski an anarchist or reducing pluralism to decentralisation, reducing Kautilya to foreign policy or to Austinian absolutism, and importing material owned by Individual and State, Forms of Government or Social and Political Ideals.

MCQ 1. What the concept of sovereignty actually asserts

A bandit can compel obedience and a government can issue commands. On the account developed in this package, what distinguishes the claim of sovereignty from both?

- A. It asserts that the holder of power possesses greater coercive capacity than any rival inside the territory.
- B. It asserts that the holder of power has acquired office through a procedure that the community regards as lawful.
- C. It asserts a recognised or effective power of **final** decision, not merely an ability to compel compliance.
- D. It asserts that the holder of power is morally entitled to the obedience of every person within the territory.

Answer: C.

Option explanations:

- **A:** Incorrect: superior force is neither necessary nor sufficient, since the canonical statement expressly separates sovereignty from mere force and locates it in recognised or effective finality.
- **B:** Incorrect: lawful acquisition is the *de jure* question of Session 4; a *de facto* sovereign obeyed without lawful title still raises the question of finality.
- **C:** Correct: the owner defines sovereignty as the supreme, final and authoritative power within a political community, and distinguishes it from the bandit's coercion precisely by finality.
- **D:** Incorrect: moral entitlement is what Laski denies to any human institution; the concept can be stated without it, and Austin deliberately excludes it.

Examiner trap 1: Opening a sovereignty answer with a definition of the *state* rather than of *sovereignty* wastes the first paragraph, because the state is the bearer of the claim while sovereignty is the claim itself.

MCQ 2. The classical attributes, stated so that they survive criticism

Which statement gives the five classical attributes of sovereignty in the qualified form the paper rewards?

- A. Absolute of any human law-maker within, permanent in the state rather than the officer, universal subject to recognised immunity, inalienable though delegable, indivisible in legal source.
- B. Absolute in every moral and practical respect, permanent for all future time, universal without exception, inalienable and undelegable, indivisible in both source and competence.
- C. Absolute against foreign powers only, permanent while the ruling party lasts, universal over citizens alone, inalienable except by treaty, indivisible except in federations.
- D. Absolute over ordinary citizens, permanent while obedience continues, universal within the capital, inalienable unless a court permits, indivisible unless the constitution says otherwise.

Answer: A.

Option explanations:

- **A:** Correct: each of the five is stated with the limiting clause the owner attaches - legal non-subordination, continuity of the state, recognised immunities, delegation without alienation, and one final legal source.
- **B:** Incorrect: this is the unqualified version that every first-year counter-example refutes; the owner explicitly warns that legal non-subordination does not prove moral infallibility or practical omnipotence.
- **C:** Incorrect: absoluteness is an *internal* claim about the absence of a superior human law-maker, and permanence attaches to the state rather than to any government or party.
- **D:** Incorrect: universality extends across persons and associations within the territory rather than a capital, and inalienability is not a matter of judicial permission.

Examiner trap 2: Reciting the five attributes without their qualifications converts a defensible doctrine into a refutable slogan, and omitting permanence and universality - the two most frequently dropped - leaves the classical set incomplete.

MCQ 3. Legal against political sovereignty

Why does the owner insist that most objections to monistic sovereignty must be labelled before they are deployed?

- A. Because objections drawn from history are weaker than objections drawn from logic, and the examiner grades the two differently.
- B. Because Austin himself accepted political sovereignty and only later writers separated it from the legal question he was answering.
- C. Because political sovereignty is a normative claim while legal sovereignty is descriptive, so the two cannot be compared at all.
- D. Because most such objections answer the question of real social power, while the thesis attacked is a claim about competence to make law.

Answer: D.

Option explanations:

- **A:** Incorrect: the distinction is not between historical and logical objections; both kinds can be aimed at either the legal or the political question.
- **B:** Incorrect: the owner places Austin firmly on the legal side and treats political sovereignty as the angle from which Laski attacks, not as something Austin conceded.
- **C:** Incorrect: legal sovereignty identifies the juristic source of valid law and political sovereignty the real locus of social power; both are descriptive, and both are comparable.
- **D:** Correct: legal sovereignty names competence to make law and political sovereignty names the power that shapes the law-maker, so an unlabelled objection commits a category error.

Examiner trap 3: Treating "political sovereignty" as a synonym for popular sovereignty confuses a sociological description of where power lies with a normative claim about where authority originates.

MCQ 4. Lawful title, actual obedience, and the divergence it exposes

Which statement correctly identifies where Bodin and Austin anchor the durability of sovereign authority?

- A. Both anchor it in habitual obedience, since neither can explain continuity without appealing to the settled compliance of subjects.
- B. Bodin anchors it in the perpetual office rather than the magistrate, whereas Austin's habitual-obedience criterion gives his theory a de facto edge.
- C. Bodin anchors it in divine sanction of the monarch, whereas Austin anchors it in the constitutional text that confers legislative competence.
- D. Both anchor it in the office, since Austin's determinate superior is defined as an institution rather than as any identifiable person or body.

Answer: B.

Option explanations:

- **A:** Incorrect: Bodin's second defining adjective is *perpetual*, which the owner glosses as authority attaching to office rather than to a temporary magistrate, so obedience is not his anchor.
- **B:** Correct: the owner states exactly this contrast - Austin's emphasis on habitual obedience has a de facto edge, while Bodin is concerned with the permanent office-character of authority.
- **C:** Incorrect: divine law is a *limit* on Bodin's sovereign rather than the ground of durability, and Austin's sovereign is not defined by a constitutional text.
- **D:** Incorrect: Austin's sovereign is expressly a determinate person or body, which is why the succession problem bites him and not Bodin.

Examiner trap 4: Writing that Bodin and Austin agree simply because both are monists throws away a cheap, high-value differentiation that comparison stems reward directly.

MCQ 5. Popular sovereignty, national sovereignty and the general will

Which statement handles the two forms and the Rousseau bridge with the precision the owner requires?

- A. Popular sovereignty means majority rule, national sovereignty means independence, and Rousseau's general will is the numerical sum of individual preferences.
- B. Popular sovereignty and national sovereignty are interchangeable expressions, and Rousseau uses the general will to justify whatever the assembled citizens decide.
- C. Popular sovereignty means the government represents the nation, national sovereignty means the nation obeys the government, and Rousseau merges the two.
- D. Popular sovereignty locates the source of public authority in the people, national sovereignty concerns collective self-determination, and the general will names the common good.

Answer: D.

Option explanations:

- **A:** Incorrect: the owner explicitly defines the general will as a claim about the common good rather than the numerical sum of private preferences, and popular sovereignty is not identical with majority rule.
- **B:** Incorrect: the two forms answer different questions - from whom authority arises, and which people may govern itself - and the owner lists their conflation as a standing trap.
- **C:** Incorrect: this inverts the doctrine, since popular sovereignty makes government the agent of the people rather than their representative superior.
- **D:** Correct: this reproduces the owner's controlling distinction and its gloss on the general will, and it preserves the warning that no majority decision is thereby morally sovereign.

Examiner trap 5: Collapsing the general will into "whatever the majority votes for" destroys the argument against Austin, because the force of the popular-sovereignty objection lies in the people's indeterminacy, not in their counting power.

MCQ 6. Bodin's definition and its pre-eminent mark

What, on Bodin's account, is the pre-eminent mark by which sovereignty is identified?

- A. The power to make and unmake law for all subjects in general without needing the consent of any superior.
- B. The power to command the armed forces of the commonwealth and to declare war on any neighbouring realm.
- C. The power to appoint magistrates and to remove them at pleasure without stating a reason to the estates.
- D. The power to interpret divine and natural law authoritatively for every subject of the commonwealth.

Answer: A.

Option explanations:

- **A:** Correct: the owner identifies the sovereign's pre-eminent mark as the power to make and unmake law for all subjects in general without needing consent from a superior.
- **B:** Incorrect: military command is an ordinary attribute of rule and does not distinguish the sovereign from a powerful magistrate or general.
- **C:** Incorrect: appointing and removing magistrates is precisely the sort of delegated function Bodin allows without conceding any division of sovereign title.
- **D:** Incorrect: divine and natural law constrain Bodin's sovereign rather than falling within his interpretive gift; making him their authoritative interpreter would erase the limits.

Examiner trap 6: Explaining "perpetual" as "eternal" misses its actual work, which is to detach authority from the office-holder and fix it in the office so that a personal ascendancy becomes a state.

MCQ 7. What limits Bodin's sovereign

Which statement gives Bodin's position on limits without either exaggerating or erasing them?

- A. The sovereign is bound by ordinary positive law and by the estates, but not by divine law, which belongs to the church alone.
- B. The sovereign is bound by nothing whatever, since the power to make law entails the power to unmake every constraint upon it.
- C. The sovereign is freed from ordinary positive law yet bound by divine law, natural law and the fundamental laws of the realm.
- D. The sovereign is bound only by the fundamental laws of the realm, divine and natural law having no place in his account.

Answer: C.

Option explanations:

- **A:** Incorrect: this reverses the structure, since being *legibus solutus* means freedom from ordinary positive law while divine law remains a genuine normative limit.
- **B:** Incorrect: this is the Hobbesian caricature the owner warns against; Bodin's absolutism is juristic rather than caprice, and he retains higher-law constraints.
- **C:** Correct: the owner lists exactly three limits - divine law, natural law and the *leges imperii* - and glosses *legibus solutus* as freedom from ordinary positive law only.
- **D:** Incorrect: the fundamental laws are one of three limits, and dropping the other two removes the moral content that distinguishes Bodin from pure absolutism.

Examiner trap 7: Making Bodin lawless removes the very feature that makes him answerable to the 2022 compatibility question, since the interesting tension is between an authority that is supreme in positive law and one that is nonetheless normatively bound.

MCQ 8. Bodin's indivisibility thesis

What exactly does Bodin's indivisibility claim forbid, and what does it permit?

- A. It forbids the delegation of any executive function and permits only advisory bodies with no power to issue binding instructions.
- B. It forbids the division of sovereign title and permits the distribution of governmental functions among estates, courts and magistrates.
- C. It forbids federal arrangements of every kind and permits unitary states to establish provincial councils with limited competence.
- D. It forbids consultation with subordinate authorities and permits the sovereign to legislate only through a single unified assembly.

Answer: B.

Option explanations:

- **A:** Incorrect: Bodin allows magistrates to issue commands; what he denies them is the final legislative power, so the prohibition is not on delegated function.
- **B:** Correct: the owner states that division of governmental functions is possible while division of sovereign title is not, citing advisory estates and subordinate courts as permitted.
- **C:** Incorrect: federal systems are a later critical counter-example to the thesis rather than the content of the thesis itself.
- **D:** Incorrect: consultation is compatible with indivisibility, and Bodin's argument concerns the location of finality rather than the procedure of legislating.

Examiner trap 8: Answering the constitutional-division objection by simply repeating that sovereignty is indivisible loses the mark; the reply must distinguish administrative distribution from the sharing of final law-making power, and then concede that critics regard the distinction as strained.

MCQ 9. Austin's definition of the sovereign

Which formulation states Austin's definition with the precision the paper rewards?

- A. A determinate human superior, receiving habitual obedience from the bulk of a society, and habitually obeying no other like superior.
- B. The state considered in the abstract, exercising the totality of public powers, and answerable to the electorate at regular intervals.
- C. Whichever institution possesses the constitutional competence to amend the fundamental law of the political community it governs.
- D. The person or body that commands the greatest coercive force and can therefore secure compliance from the population it rules.

Answer: A.

Option explanations:

- **A:** Correct: this reproduces all three linked elements - determinacy, habitual obedience by the bulk, and obedience to no one - which together close the chain of legal validity.
- **B:** Incorrect: the owner's first standing trap is exactly this, since Austin's sovereign is a determinate person or body rather than the state in the abstract.
- **C:** Incorrect: locating sovereignty in an amending competence is the *relocation* Austinians attempt under pressure from federalism, not Austin's own definition.
- **D:** Incorrect: this reduces the definition to force and abandons the distinction from mere coercion that the concept requires from the outset.

Examiner trap 9: Dropping the third element - that the sovereign habitually obeys no one - makes the international-law criticism unanswerable, because the criticism turns precisely on the absence of any determinate global superior.

MCQ 10. Command, sanction and the law of facilities

Which criticism of the command theory does the owner treat as the most damaging to Austin's definition itself?

- A. That penal law is only a small part of any developed legal system, so the paradigm case is statistically unrepresentative.
- B. That international law binds states through treaty and custom despite the absence of any determinate global superior.
- C. That federal constitutions distribute competences so that no single level of government is superior in all matters.
- D. That much of law confers facilities rather than issuing orders, so that a defective will is a nullity and not a sanction.

Answer: D.

Option explanations:

- **A:** Incorrect: relative frequency is not the objection; the difficulty is conceptual, since power-conferring rules cannot be redescribed as commands at all.
- **B:** Incorrect: this is a strong external criticism of the theory's scope, but Austin can answer it by denying that international law is law in the strict sense.
- **C:** Incorrect: federalism attacks indivisibility empirically, and Austin replies by relocating finality to the constitution-making authority.
- **D:** Correct: the owner treats power-conferring rules as an internal defect Austin cannot solve, since nullity is the absence of legal effect rather than an evil attached to disobedience.

Examiner trap 10: Describing the nullity of a defective legal act as a "sanction" concedes Hart's point while appearing to resist it, because a sanction is an evil imposed for disobedience whereas nullity is simply the failure of an attempted legal act.

MCQ 11. Why the five Austinian attributes are forced

On the reading developed here, why does Austin's definition require determinacy, absoluteness, indivisibility, illimitability and inalienability?

- A. Because each attribute was independently observed in the centralised European legal orders that Austin had studied in detail.
- B. Because each closes a possible gap through which the chain of legal validity would fail to terminate in a final source.
- C. Because each was inherited directly from Bodin, whose definition Austin restated in more precise analytical language.
- D. Because each is required by the moral claim that a legal system must make on the obedience of the subjects it governs.

Answer: B.

Option explanations:

- **A:** Incorrect: the owner concedes that Austinian indivisibility is stricter than empirical political reality and is a logical feature of the scheme, not an observation.
- **B:** Correct: indeterminacy would leave the origin unlocatable, divisibility would create rival origins, limitation would push validity to a further source, and alienability would make finality transferable.
- **C:** Incorrect: Bodin supplies absolute and perpetual and retains higher-law limits, so Austin's illimitable legal sovereign is a radicalisation rather than a restatement.
- **D:** Incorrect: Austin's project separates what law is from what law ought to be, so no moral claim enters the definition of the attributes.

Examiner trap 11: Listing the five attributes without stating why the list is forced scores as vocabulary rather than argument, and it leaves the candidate unable to explain why empirical counter-examples do not by themselves refute the scheme.

MCQ 12. The pattern shared by the three structural criticisms

Federalism, international law and customary law are usually presented as three separate objections to Austin. What single pattern do they share?

- A. Each shows that Austin underestimated the practical importance of moral limits on the exercise of legal authority.
- B. Each shows that Austin's theory applies well to monarchies but poorly to any political order with an elected legislature.
- C. Each locates law where no determinate superior stands, and each Austinian reply relocates the sovereign at a cost to determinacy.
- D. Each depends on historical examples drawn from periods after Austin wrote, so none of them can fairly be pressed against him.

Answer: C.

Option explanations:

- **A:** Incorrect: moral limits form a separate criticism in the owner's table, and the three structural objections turn on the absence of a determinate superior rather than on morality.
- **B:** Incorrect: federalism and custom arise in monarchies too, and the democracy objection is treated separately in the owner's scheme.
- **C:** Correct: the constitution-making authority, the denial that international law is law and the device of tacit adoption are three relocations, each weakening determinacy.
- **D:** Incorrect: customary law and federal arrangements long predate Austin, and Maine's counter-example is drawn from a contemporaneous political order.

Examiner trap 12: Presenting Austin's denial that international law is truly law as an oversight misreads him, since it is his explicit and argued position; the criticism must attack the definition's narrowness, not his attention.

MCQ 13. Austin and democracy

Which answer structure does the owner require for the compatibility question?

- A. A single negative verdict, since democracy disperses authority and therefore cannot contain a legally supreme law-making body at all.
- B. A single affirmative verdict, since every democracy contains a legislature that can be identified as the determinate human superior.
- C. A historical verdict, since Austin wrote before mass democracy and cannot be assessed against institutions he never observed.
- D. A two-level verdict: compatible in the narrow legal sense of naming a law-maker, incompatible in the constitutional-political sense.

Answer: D.

Option explanations:

- **A:** Incorrect: the owner concedes that in a narrow legal sense one may identify a law-making body, so a flat negative overstates the case.
- **B:** Incorrect: this ignores that democracy makes final authority derivative, revisable and answerable, which is what Austin's illimitability forbids.
- **C:** Incorrect: the papers ask the question directly and the owner answers it doctrinally, so a refusal to judge does not meet the demand.
- **D:** Correct: the owner's balanced structure is yes in the narrow legal sense and no in the deeper constitutional-political sense, with the reason for the split stated.

Examiner trap 13: Answering the 2021 stem with a flat yes or no forfeits the structural mark, because the demand is a graded judgement in which the level at which each verdict holds must be named.

MCQ 14. Parliamentary sovereignty and constitutional supremacy

Which statement handles the jurisdiction control correctly?

- A. In the United Kingdom Parliament is the supreme legal authority, while in India Parliament exercises competences conferred by a supreme written Constitution.
- B. In the United Kingdom the courts may strike down primary legislation, while in India Parliament may amend any provision of the Constitution at will.
- C. Both the United Kingdom and India practise parliamentary sovereignty, because both have parliamentary government and a legislature that makes law.
- D. In India the judiciary is sovereign because judicial review permits it to invalidate legislation enacted by the elected legislature.

Answer: A.

Option explanations:

- **A:** Correct: the owner's table states precisely this contrast, with courts generally unable to overrule UK primary legislation and Indian competences derived from the Constitution.
- **B:** Incorrect: this inverts both halves, since UK courts generally cannot overrule primary legislation and the Indian amending power is limited by the basic-structure doctrine.
- **C:** Incorrect: parliamentary sovereignty is jurisdiction-specific and is not a synonym for every parliamentary form of government.
- **D:** Incorrect: the owner expressly cautions that India's judiciary is not sovereign merely because it reviews legislation.

Examiner trap 14: Using *Kesavananda Bharati* (1973) as proof that a philosophical theory is correct misclassifies it; it is a dated judicial decision illustrating a legally limited amending competence, not evidence for or against Austin, Kelsen or Hart.

MCQ 15. Kelsen's hierarchy of norms

Which statement gives Kelsen's central argument and its effect on sovereignty?

- A. Validity derives from the sovereign's command, and the basic norm records the moral principles that a legal order must satisfy.
- B. Validity derives from a higher norm, terminating in a presupposed basic norm, so the sovereign becomes the order's highest competence.
- C. Validity derives from the convergent practice of officials, and the basic norm is the social fact of their acceptance of that practice.
- D. Validity derives from the effectiveness of the legal order, and the basic norm is an empirical generalisation about observed obedience.

Answer: B.

Option explanations:

- **A:** Incorrect: Kelsen's founding premise is that "is" does not yield "ought", so no fact of command generates validity, and the basic norm is expressly morally inert.
- **B:** Correct: the owner sets out the pyramid from administrative order to statute to constitution to presupposed *Grundnorm*, with sovereignty becoming an attribute of the normative order.
- **C:** Incorrect: convergent official practice is Hart's rule of recognition, which Hart offers precisely against Kelsen's presupposed norm.
- **D:** Incorrect: efficacy is a *condition* of validity in Kelsen's treatment of revolution, never its source, and the basic norm is presupposed rather than generalised.

Examiner trap 15: Filing Kelsen alongside Laski as an external critic destroys the two-stage structure that twenty-mark stems reward, since Kelsen repairs Austin from inside legal positivism while Laski attacks from outside it.

MCQ 16. Kelsen, revolution and the residual problem

A successful revolution replaces a constitution without any authorising norm. What is Kelsen's reply, and what problem remains?

- A. He denies that revolutions occur within legal science, and the residual problem is that his theory cannot describe political change at all.
- B. He treats the new constitution as valid because the revolutionaries obtain habitual obedience, and the residual problem is circularity with Austin.
- C. He argues that the old basic norm survives all changes of regime, and the residual problem is that valid law would then never change.
- D. He holds that jurists presuppose a new basic norm once the order is by and large effective, and efficacy thereby re-enters the theory.

Answer: D.

Option explanations:

- **A:** Incorrect: Kelsen offers a positive account of revolutionary change rather than excluding it, and the owner records that account explicitly.
- **B:** Incorrect: habitual obedience is Austin's criterion; Kelsen's condition is the by-and-large effectiveness of the order, and he does not adopt Austin's formulation.
- **C:** Incorrect: the survival of the old basic norm would make the new order invalid, which is the opposite of Kelsen's position.
- **D:** Correct: the owner states that a new basic norm is presupposed when the order becomes by and large effective, and concedes that this readmits the fact of power.

Examiner trap 16: Defending the basic norm as though it were a demonstrated truth misstates Kelsen's own claim, which is that it is a transcendental-logical condition of treating anything as valid law - a postulate, not a fact.

MCQ 17. Hart's three defects and three secondary rules

Which pairing of defect and cure is correct on Hart's account?

- A. Uncertainty is cured by rules of change; the static character is cured by rules of adjudication; inefficiency is cured by the rule of recognition.
- B. Uncertainty is cured by rules of adjudication; the static character is cured by the rule of recognition; inefficiency is cured by rules of change.
- C. Uncertainty is cured by the rule of recognition; the static character is cured by rules of change; inefficiency is cured by rules of adjudication.
- D. Uncertainty is cured by primary rules; the static character is cured by sanctions; inefficiency is cured by the sovereign's habitual command.

Answer: C.

Option explanations:

- **A:** Incorrect: rules of change authorise creation, amendment and repeal, which cures stasis rather than uncertainty about which rules count as law.
- **B:** Incorrect: rules of adjudication confer authority to determine breach and remedy, which cures inefficiency rather than uncertainty.
- **C:** Correct: the owner's table pairs recognition with uncertainty, change with the static character of custom, and adjudication with the inefficiency of diffuse enforcement.
- **D:** Incorrect: primary rules are the regime whose defects are being cured, and sanctions and command belong to the Austinian model Hart rejects.

Examiner trap 17: Treating Hart's rule theory as a restatement of Austin misses the rejection at its core, since Hart denies that nullity is a sanction, that habit explains succession, and that being obliged is having an obligation.

MCQ 18. Being obliged and having an obligation

Why does Hart regard this distinction as fatal to Austin's account of legal obligation?

- A. Because habitual obedience records only external regularity and so cannot separate a legal duty from submission to a gunman's threat.
- B. Because it shows that sanctions are morally objectionable, so any theory built upon them cannot justify the state's coercive power.
- C. Because it proves that most citizens obey the law from fear, so habitual obedience is an inaccurate description of their conduct.
- D. Because it establishes that only judges, and not ordinary subjects, can be said to have obligations under a developed legal system.

Answer: A.

Option explanations:

- **A:** Correct: the internal point of view treats a rule as a reason for conduct and a ground for criticising deviation, which external regularity cannot capture.
- **B:** Incorrect: Hart's objection is analytical rather than moral, and he insists that legal validity be explained without moral evaluation.
- **C:** Incorrect: the distinction concerns what obligation *is*, not the empirical motives from which people in fact comply.
- **D:** Incorrect: the internal point of view is available to participants generally, and the rule of recognition is described through officials without confining obligation to them.

Examiner trap 18: Developing Dworkin's principles-and-hard-cases objection inside a sovereignty answer breaches ownership; name it as the next objection to Hart and route it, because the doctrine belongs to Individual and State.

MCQ 19. Laski's central thesis

Which statement gives Laski's position without overstating or understating it?

- A. The state should be abolished because every association is equally competent to govern the affairs of its own members.
- B. The state should be preserved unchanged because plural associations derive whatever authority they possess from its permission.
- C. The state is one association among many, uniquely important yet not the sole and morally unlimited source of all authority.
- D. The state is one association among many, exactly equal in function and authority to churches, unions and professional bodies.

Answer: C.

Option explanations:

- **A:** Incorrect: the owner records that Laski is a pluralist and not an anarchist, and that he does not deny the need for the state.
- **B:** Incorrect: this is the monist position Laski attacks, since he refuses to treat associations as permissions granted by sovereignty.
- **C:** Correct: this reproduces the owner's formulation, including the concession that the state retains coordinating and coercive capacities.
- **D:** Incorrect: the owner expressly warns that "one association among many" does not mean all associations are equal in function.

Examiner trap 19: Quoting the early Laski's attack on sovereignty as a legal fiction as though it were his settled view ignores the phase caution: his mature position conceded sovereignty's importance while denying omnipotence.

MCQ 20. Why Laski rejects absolute sovereignty

His rejection rests on three grounds. What is the structural feature that makes the argument strong?

- A. The three grounds are three restatements of a single moral premise, which gives the argument unusual rhetorical force.
- B. The three grounds are of three different kinds - moral, political and empirical - so answering one leaves the others standing.
- C. The three grounds are arranged in order of increasing strength, so the final ground alone is sufficient to defeat monism.
- D. The three grounds are drawn from three different thinkers, so the argument carries the authority of an entire school.

Answer: B.

Option explanations:

- **A:** Incorrect: philosophical falsity, political danger and sociological unrealism are distinct claims rather than restatements of one premise.
- **B:** Correct: their logical independence is what forces the monist to answer each separately, and conceding the empirical ground already abandons indivisibility.
- **C:** Incorrect: the owner presents the three as independent rather than as a ranked series culminating in a decisive ground.
- **D:** Incorrect: Figgis, Cole and MacIver locate the school and supply support, but the three grounds are Laski's own and are not divided among them.

Examiner trap 20: Answering the 2018 stem on whether Laski's view is a satisfactory position without naming the criterion of satisfactoriness produces an unanchored verdict; name the test, apply it, and concede the coordination debt.

MCQ 21. Kautilya's seven-limbed state

What is the philosophical point of the *saptāṅga* doctrine?

- A. Sovereignty is systemic rather than merely personal, since effective rule depends on ministers, territory, defence, treasury, force and allies.
- B. Sovereignty is divided among seven office-holders, each of whom exercises final authority within a separately defined sphere of competence.
- C. Sovereignty is administrative rather than political, since the list enumerates departments of government rather than sources of authority.
- D. Sovereignty is contractual, since the seven limbs represent the parties whose agreement establishes and sustains the authority of the ruler.

Answer: A.

Option explanations:

- **A:** Correct: the owner presents the state as an organism in which the ruler is head but cannot function without the other limbs, making sovereignty systemic.
- **B:** Incorrect: royal primacy is preserved; the limbs are constituents of state capacity rather than seven co-ordinate holders of final authority.
- **C:** Incorrect: the doctrine is an argument about what makes rule possible, and the owner contrasts it with Austin's search for the legal source of command.
- **D:** Incorrect: nothing in the *saptāṅga* scheme is contractual, and reading consent into it imports a modern framework the owner warns against.

Examiner trap 21: Translating *janapada* as territory alone drops its people, and with them the productive social base that connects the seven limbs to the welfare argument.

MCQ 22. Calibrated coercion

What does *danḍanīti* assert about the relation between force and sovereignty?

- A. That coercion is an emergency power, to be reserved for occasions when ordinary administration and counsel have already failed.
- B. That coercion should be maximised, since the ruler's security depends on the certainty that disobedience will be severely punished.
- C. That coercion should be minimised, since the ruler's legitimacy depends chiefly on welfare provision rather than on enforcement.
- D. That coercion is constitutive of rule and must be calibrated, since its absence brings disorder and its excess breeds resentment.

Answer: D.

Option explanations:

- **A:** Incorrect: *danḍa* is one of the seven constituents of the state, which makes coercive capacity a permanent structural feature rather than an exceptional one.
- **B:** Incorrect: the owner states that excessive *danḍa* breeds resentment and instability, so maximisation is self-defeating on Kautilya's own terms.
- **C:** Incorrect: the owner is explicit that without *danḍa* society falls into disorder, so minimisation is equally rejected.
- **D:** Correct: the art of sovereignty lies in calibrated punishment, and the *nīti* half of the term names the policy governing the use of force.

Examiner trap 22: Reading modern proportionality doctrine into *danḍanīti* manufactures a theory of rights; the restraint is prudential and stability-based, resting on the ruler's interest rather than on enforceable claims held by subjects.

MCQ 23. The circle of states and the printed maxim

The 2025 paper prints "There is no permanent friend or permanent enemy." How should the candidate handle it?

- A. As a verified quotation from the *Arthaśāstra*, cited with the translator's name and used as direct textual evidence for the answer.
- B. As the examiner's framing, answered through the verified *maṇḍala* and *ṣaḍguṇya* doctrines that make alignment positional and policy responsive.
- C. As a maxim of modern realist international relations, which should be traced to its twentieth-century sources before Kautilya is discussed.
- D. As a mistranslation, which the candidate should correct before proceeding to expound Kautilya's actual view of interstate relations.

Answer: B.

Option explanations:

- **A:** Incorrect: the owner records that the exact wording has not been verified in the local *Arthaśāstra* synopsis or the checked source passages, so calling it a quotation invents a fact.
- **B:** Correct: the owner instructs that the line be treated as prompt wording and answered through the circle of states and the six-fold policy.
- **C:** Incorrect: the stem asks for Kautilya's view of sovereignty, so relocating the discussion into modern realism answers a different question.
- **D:** Incorrect: nothing in the source trail establishes a mistranslation, and asserting one would itself be an unsupported claim.

Examiner trap 23: Reducing Kautilya to foreign policy loses most of the owned corpus, because the seven limbs, calibrated coercion and the duty to security and welfare carry four of the five Kautilya parts.

MCQ 24. Sovereignty under globalisation

Which set of consequences correctly matches the four mechanisms the owner distinguishes?

- A. Treaty transfers sovereignty, delegation abolishes it, pooling suspends it, and material dependence restores it once the asymmetry ends.
- B. Treaty suspends sovereignty, delegation shares it, pooling transfers it, and material dependence has no consequence for it whatever.
- C. Treaty is self-limitation, delegation moves the exercise while the source stays treaty-based, pooling shares finality in a field, dependence narrows autonomy.
- D. Treaty creates a global sovereign, delegation confirms it, pooling extends it, and material dependence demonstrates that legal independence is fictional.

Answer: C.

Option explanations:

- **A:** Incorrect: treaty commitment is an exercise of a state's own recognised capacity and constrains future action without transferring sovereignty at all.
- **B:** Incorrect: material dependence has the most serious practical consequence, since legal independence may survive while effective autonomy declines.
- **C:** Correct: this reproduces the owner's four-row table exactly, preserving the difference between legal source, exercise, shared finality and practical constraint.
- **D:** Incorrect: the owner cautions that not every international organisation is supranational and that no supranational institution is automatically sovereign in Austin's sense.

Examiner trap 24: Writing that sovereignty simply disappears under globalisation abandons the analytical grid; the required phrasing is reconfigured, constrained, pooled or negotiated, and the four mechanisms must be kept apart.

MCQ 25. Remedial - the provenance pair that the paper punishes

Which attribution is correct?

- A. Kelsen, *The Concept of Law*, 1945; Hart, *General Theory of Law and State*, 1961.
- B. Kelsen, *General Theory of Law and State*, 1961; Hart, *The Concept of Law*, 1945.
- C. Kelsen, *The Concept of Law*, 1961; Hart, *General Theory of Law and State*, 1945.
- D. Kelsen, *General Theory of Law and State*, first English edition 1945; Hart, *The Concept of Law*, 1961.

Answer: D.

Option explanations:

- **A:** Incorrect: the titles are swapped, since *The Concept of Law* is Hart's work and *General Theory of Law and State* is Kelsen's.
- **B:** Incorrect: both the titles and the years are swapped, producing the exact error the owner marks as most frequently committed.
- **C:** Incorrect: the titles are swapped and the years are attached to the wrong authors, compounding two separate mistakes in one line.
- **D:** Correct: Kelsen's *General Theory of Law and State* appeared in English in 1945 and Hart's *The Concept of Law* in 1961, cited by title and year only.

Examiner trap 25: Guessing a year rather than naming the works in sequence converts an avoidable risk into a factual error; where the date is uncertain, write "Austin, then Kelsen, then Hart" and omit the years entirely.

MCQ 26. Remedial - three dissolutions that must not be merged

Kelsen, Hart and Laski each dissolve the personal absolute sovereign. What replaces him in each case?

- A. A norm-hierarchy for all three, differing only in whether the apex is presupposed, socially accepted or democratically authorised.
- B. A norm-hierarchy for Kelsen, an accepted official practice for Hart, and a plurality of associations for Laski.
- C. An accepted official practice for Kelsen, a plurality of associations for Hart, and a norm-hierarchy for Laski.
- D. A plurality of associations for all three, differing only in whether the associations are legal, social or economic in character.

Answer: B.

Option explanations:

- **A:** Incorrect: Laski offers no norm-hierarchy at all, and Hart's rule of recognition is a social fact rather than a norm standing above the system.
- **B:** Correct: the owner states this three-way divergence and warns explicitly against merging the three into one modern critique of Austin.
- **C:** Incorrect: the replacements are attached to the wrong thinkers, reversing the very distinction the owner requires candidates to preserve.
- **D:** Incorrect: only Laski replaces the sovereign with plural associations; Kelsen and Hart remain legal positivists offering intra-systemic accounts of validity.

Examiner trap 26: Presenting Kelsen and Hart as allies of Laski loses the ordering that marks philosophical control, since a twenty-mark answer should run the internal critique first and the external critique second.

MCQ 27. Remedial - the Indian illustration, handled safely

Which use of Indian material is permitted by the owner's cautions?

- A. India illustrates competence-distributed authority under constitutional supremacy, with judicial review and a limited amending power.
- B. India illustrates Austinian sovereignty, since Parliament is habitually obeyed by the bulk of society and obeys no like superior.
- C. India illustrates Kelsen's theory, since the Preamble of the Constitution functions as the basic norm of the Indian legal order.
- D. India illustrates Laski's pluralism, since federal states possess a share of sovereignty equal to that of the Union government.

Answer: A.

Option explanations:

- **A:** Correct: the owner permits exactly this description - rule-governed, competence-distributed authority that Austin's illimitable superior cannot accommodate.
- **B:** Incorrect: the owner forbids describing any Indian institution, office or period as "the sovereign" in Austin's sense.
- **C:** Incorrect: the owner forbids attributing a *Grundnorm* to any named document as though Kelsen had said so.
- **D:** Incorrect: this overstates the constitutional position and imports a philosophical conclusion that the federal arrangement does not establish.

Examiner trap 27: Calling India a system of parliamentary sovereignty confuses parliamentary *government* with the United Kingdom's jurisdictional doctrine, and adding that the judiciary is therefore sovereign compounds the error.

MCQ 28. Remedial - what globalisation does and does not do

Which formulation is both accurate and usable in a fifteen-mark answer?

- A. Sovereignty has been abolished, since no state can now act without the approval of international institutions and financial markets.
- B. Sovereignty is unaffected, since legal independence is unchanged and every constraint is voluntarily accepted by the state concerned.
- C. Sovereignty is reconfigured: legal form persists, exercise may be delegated or pooled, and material dependence can reduce effective autonomy.
- D. Sovereignty is transferred to supranational bodies, which now satisfy Austin's definition of a determinate and illimitable superior.

Answer: C.

Option explanations:

- **A:** Incorrect: states continue to claim final authority over territory, law, security and political membership, so abolition overstates the evidence.
- **B:** Incorrect: this ignores conditionality, under which legal independence survives while the range of feasible choices narrows sharply.
- **C:** Correct: this preserves the owner's distinction between legal persistence, delegated exercise, pooled finality and practical constraint.
- **D:** Incorrect: the owner cautions that even a supranational institution is not automatically sovereign in Austin's sense.

Examiner trap 28: Importing current institutional or diplomatic detail breaches ownership, since International Relations owns the institutions and disputes while this clause uses the mechanisms analytically and generically.

MCQ 29. Remedial - Bodin against Hobbes

Which statement correctly prevents the conflation of the two absolutists?

- A. Both hold sovereignty to be created by a covenant among subjects, and both deny that any higher law binds the resulting authority.
- B. Bodin's sovereign is above ordinary positive law but bound by divine law, natural law and the *leges imperii*; the conflation erases those limits.
- C. Bodin's sovereign is bound by the estates while Hobbes's is bound by natural law, so Bodin is the more constrained of the two theorists.
- D. Both are indistinguishable in substance, and the apparent difference reflects only the different centuries in which they wrote.

Answer: B.

Option explanations:

- **A:** Incorrect: Bodin's account is not covenantal, and he retains higher-law limits that the conflation removes.
- **B:** Correct: the owner's trap list states that Bodin allows higher-law restraints while Austin's legal sovereign is formally unlimited, and warns against reading Bodin as Hobbes.
- **C:** Incorrect: the estates are advisory in Bodin's scheme, and the description of Hobbes here is not supported by this owner.
- **D:** Incorrect: the owner insists that Bodin is not simply Hobbes before Hobbes, precisely because his sovereign is supreme yet not morally empty.

Examiner trap 29: Using Hobbes as anything more than a clearly marked comparative foil breaches ownership, because the social contract, the state of nature and political obligation belong to Individual and State.

MCQ 30. Remedial - what pluralism is not

Which statement identifies the two errors the owner warns against in reading Laski?

- A. Treating him as a monist, and treating his account of associations as a description rather than as a normative recommendation.
- B. Treating him as a legal positivist, and treating his critique of Austin as identical with Hart's critique of the command theory.
- C. Treating him as a defender of federalism, and treating his account of allegiance as a theory of constitutional amendment procedure.
- D. Treating him as an anarchist, and treating pluralism as mere administrative decentralisation rather than a challenge to one unlimited will.

Answer: D.

Option explanations:

- **A:** Incorrect: nobody reads Laski as a monist, and his account of associations is expressly both descriptive and normative.
- **B:** Incorrect: Laski is not a legal positivist, and the owner separates his external critique from Hart's internal one.
- **C:** Incorrect: the owner distinguishes Laski's claim about the concept of final unlimited will from any constitutional arrangement.
- **D:** Correct: these are traps two and nine of the owner's standing list, and both are common in scripts on the 2018 and 2023 parts.

Examiner trap 30: Allowing Figgis, Cole or MacIver to take over the answer displaces the printed thinker; they locate the school and supply support, and the marks follow Laski.

MCQ 31. Remedial - Kautilya beyond strategy

Which statement corrects the two commonest misreadings of Kautilya in this clause?

- A. He is neither reducible to the circle of states nor equivalent to Austinian absolutism, since welfare and the seven limbs bind the ruler.
- B. He is neither a realist nor a moralist, since the *Arthaśāstra* offers a purely descriptive account of how ancient kingdoms actually behaved.
- C. He is neither concerned with law nor with welfare, since his subject is exclusively the management of interstate rivalry and alliance.
- D. He is neither applicable to democracy nor to monarchy, since his categories presuppose an economy and society that no longer exist.

Answer: A.

Option explanations:

- **A:** Correct: traps four and five of the owner's list forbid both the equation with Austinian absolutism and the reduction to foreign policy.
- **B:** Incorrect: the owner describes him as a realist thinker of rule constrained by dharma and public welfare, which is a normative as well as descriptive position.
- **C:** Incorrect: security and welfare and the duty toward subjects are central, and calibrated coercion concerns internal order rather than diplomacy.
- **D:** Incorrect: the owner permits selective appropriation of statecraft principles into democratic government while rejecting monarchical absolutism.

Examiner trap 31: Answering the applicability question with a flat affirmative loses the discrimination mark; the required formula is that the monarchical form is not transferable while the principles of statecraft are.

MCQ 32. Remedial - what this clause does not own

Which material must be named and routed rather than developed inside a sovereignty answer?

- A. The five classical attributes, the de jure and de facto pair, and the distinction between legal and political sovereignty.
- B. Kelsen's hierarchy of norms, Hart's rule of recognition, and Kautilya's six-fold policy of interstate measures.
- C. Dworkin's principles and hard cases, the social contract and state of nature, and the institutional forms of democracy.
- D. Bodin's higher-law limits, Austin's command theory, and Laski's argument that the state must compete for allegiance.

Answer: C.

Option explanations:

- **A:** Incorrect: all three are core taxonomy owned by this clause and are required in almost every answer within it.
- **B:** Incorrect: Kelsen and Hart are the two internal repairs the owner develops, and the six-fold policy is Kautilya's own doctrine.
- **C:** Correct: Dworkin belongs to Individual and State, the contract and state of nature to the same owner, and democratic forms to Forms of Government.
- **D:** Incorrect: these are the central doctrines of three of the four printed thinkers and cannot be routed away.

Examiner trap 32: Importing the normative theory of equality, justice and liberty rather than using it as the stated test in the 2022 stem converts a sovereignty answer into an ideals essay and forfeits the ownership mark.

PYQS AND ANSWER PRACTICE

Practice status and source discipline - read once, applies to every solution below

Every model answer here is independent learner practice and is **never** an official UPSC key; UPSC publishes no descriptive model answer for Philosophy Paper II. Question wording is reproduced exactly as printed in the official papers, including the paper's own spelling "**Danda-neety**" in the 2018 part and "**Arthasastra**" in the 2024 part, which are preserved verbatim inside the question line and rendered as *danḍanīti* and *Arthaśāstra* in the answer prose. The 2018 to 2025 Paper II texts are held locally, and the English wording of every part below follows the repository's verified Socio-Political PYQ ledger. Provenance is treated as examinable: **Kelsen, General Theory of Law and State, first English edition 1945; Hart, The Concept of Law, 1961; Kesavananda Bharati v. State of Kerala, Supreme Court judgment, 1973; Bodin's Six Books of the Commonwealth, Austin's The Province of Jurisprudence Determined, Laski's A Grammar of Politics and Studies in the Problem of Sovereignty, and Kautilya's Arthaśāstra** in the Shamasastri and Kangle translations, in every case without page, chapter, edition or invented quotation. ANALYSIS: The line printed in the 2025 stem is treated as the **examiner's framing** and never as verified Kautilyan wording. Interpretive disputes - whether a distributed constitutional order still contains a single point of finality, whether the basic norm is a postulate or a fiction, whether bounded judicial discretion answers Dworkin, and whether pluralism can supply a decision procedure in emergency - are flagged as contested rather than settled.

Answer-length convention used throughout this package. UPSC Philosophy Paper II parts are written longer than General Studies answers. The working bands used here are **10 marks - about 150 to 220 words, 15 marks - about 250 to 330 words, and 20 marks - about 330 to 400 words**. Every solution below sits inside its declared band, and the demand decoding, the verdict heading and the "why this earns marks" notes are teaching apparatus that sit **outside** the timed word count.

Coverage. ANALYSIS: Corpus signal: this clause owns **11 of 112** Socio-Political question-parts in the 2018-2025 corpus, distributed **2018: 2, 2019: 1, 2020: 2, 2021: 2, 2022: 1, 2023: 1, 2024: 1, 2025: 1**. All eleven are solved in full below, followed by **six original solved Mains models**, two each at 10, 15 and 20 marks. The internal distribution is worth knowing before the examination: **Kautilya** carries five parts (2018 Q1(d), 2019 Q3(a) jointly, 2021 Q3(c), 2024 Q4(b), 2025 Q2(c)) - by far the largest share and the clearest signal in the clause; **Laski** two (2018 Q2(b), 2023 Q2(a)); **Bodin** two (2020 Q1(d), 2022 Q2(a)); **Austin** two (2019 Q3(a), 2021 Q1(c)); and **the doctrine as such under**

globalisation one (2020 Q4(b)). ANALYSIS: Ownership discipline: Rousseau's natural against artificial inequality belongs to **Social and Political Ideals**, the origin of social-contract theory to **Individual and State**, democracy as a form of government to **Forms of Government**, and Marxism or anarchism as ideology to **Political Ideologies**; none of those parts is counted here.

Solved PYQ 1 · 2018 · Q1(d) · 10 marks

Question: Discuss Kautilya's concept of sovereignty in the light of 'Danda-neeti'.

Demand decoding

Element	Requirement
Directive	"Discuss" - exposition plus one adjudicated tension, not a description of punishment
Core issue	What calibrated coercion (<i>daṇḍanīti</i>) reveals about the nature of Kautilyan sovereignty
Scope boundary	Ten marks: lead with calibration; use the seven limbs and welfare as support only
Thinker thesis	Sovereignty is the capacity to maintain order through disciplined force, not arbitrary cruelty
Non-negotiables	<i>Daṇḍa</i> as one of the seven limbs; the two-sided failure of too little and too much; welfare as the complement

Independent model answer

Thesis. FACT: For Kautilya, sovereignty is measured by the ruler's capacity to calibrate force, not by his freedom to use it; *daṇḍanīti* is therefore a doctrine of proportion rather than of severity.

Where coercion sits. FACT: Coercive force (*daṇḍa*) is one of the seven constituents of the state (*saptāṅga*), alongside the ruler (*svāmī*), ministers (*amātya*), territory with its people (*janapada*), fortified defence (*durga*), treasury (*kośa*) and ally (*mitra*). ANALYSIS: Placing it among the constituents makes the capacity to punish a permanent structural feature of rule rather than an emergency power.

The calibration argument. FACT: Without *daṇḍa*, society falls into disorder; with excessive *daṇḍa*, the ruler breeds resentment and instability. ANALYSIS: The art of sovereignty therefore lies in ordered, proportionate enforcement - *daṇḍa* is the force and *nīti* the policy that governs its use.

What this shows about sovereignty. ANALYSIS: The ruler is head of an organism rather than an unlimited master: authority is real, but its legitimacy and durability are judged by order and by security and welfare (*yogakṣema*). FACT: Fear without welfare is self-defeating; welfare without order is impossible.

Verdict. ANALYSIS: Kautilyan sovereignty is strong precisely because it is duty-bound. CAUTION: The restraint is nonetheless prudential rather than rights-based: it binds the ruler's interest, not his entitlement, and an accurate answer concedes that difference rather than reading modern constitutionalism into the text.

Why this earns marks

Answer-writing focus: the commonest failure here is a paragraph on ancient punishment. The stem says *in the light of daṇḍanīti*, which means the doctrine of calibrated coercion must be the lens through which sovereignty is characterised.

Exam-length execution - 10 marks, about 150 to 220 words: thesis two lines; placement three; calibration three; welfare link three; verdict two.

- **Structure:** thesis -> *daṇḍa* as a constituent -> two-sided failure -> welfare complement -> graded verdict.
- **Doctrine:** *daṇḍanīti* as the science of punishment and disciplined enforcement.
- **Evidence:** the seven limbs by name; disorder without force and resentment beyond it.
- **Distinction:** ordered coercion against blind terror.
- **Criticism:** prudential restraint is not a rights-based limit, conceded in the verdict.

Solved PYQ 2 · 2018 · Q2(b) · 15 marks

Question: Critically evaluate Laski's view on sovereignty as a satisfactory position in political theory.

Demand decoding

Element	Requirement
Directive	"Critically evaluate ... as a satisfactory position" - the criterion of satisfactoriness must be named first
Core issue	Whether pluralism succeeds as a positive theory, not merely as a critique
Scope boundary	Fifteen marks: exposition, two objections with replies, one residual problem, conditional verdict
Thinker thesis	The state is one association among many; sovereignty cannot be absolute
Non-negotiables	Three grounds of three kinds; the phase caution; the coordination debt

Independent model answer

Naming the test. ANALYSIS: A position is satisfactory in political theory if it describes political life accurately, protects the values it claims to protect, and supplies an account of the function it displaces. Laski passes the first two tests decisively and the third only partly.

The position. FACT: Laski rejects the monistic doctrine that the state possesses absolute, indivisible and unlimited sovereignty. Individuals belong simultaneously to family, church, union, guild, cooperative, profession and locality, and these bodies command real loyalty; the state is therefore **one association among many**, uniquely important but not the sole source of obligation. FACT: Allegiance must be earned by protecting rights, securing welfare and enabling meaningful life, not claimed by legal title.

Why absolutism is rejected - three grounds of three kinds. FACT: Philosophically, no human institution is entitled to unlimited moral obedience; politically, absolute sovereignty legitimises tyranny and suppresses liberty; sociologically, real societies distribute power among many groups. ANALYSIS: Their independence is the argument's strength: answering one leaves the others standing.

First objection and reply. FACT: Without a final sovereign, conflict between associations becomes insoluble. ANALYSIS: Laski replies that legal finality does not eliminate conflict but often suppresses legitimate diversity, and that modern orders need a final **procedure**, not an unanswerable will.

Second objection and reply. FACT: Shared sovereignty is conceptually incoherent. ANALYSIS: His real claim is that the monistic concept itself misdescribes overlapping authority.

Residual problem. ANALYSIS: Neither reply supplies a decision procedure for emergencies, defence or redistribution; MacIver's residual coordinating role concedes exactly this.

Verdict. ANALYSIS: Satisfactory as a critique of absolutism and as a defence of liberty through social plurality; **not** satisfactory as a complete replacement for the concept of final authority. FACT: Note also the phase caution: "Laski abolishes sovereignty" is as inaccurate as "Laski accepts Austin".

Why this earns marks

Answer-writing focus: "satisfactory" is an evaluative word with no fixed content, so the criterion must be supplied by the candidate in the first two lines. Scripts that omit it produce a verdict with nothing behind it.

Exam-length execution - 15 marks, about 250 to 330 words: test two lines; position four; three grounds three; two objection-reply pairs four; residual two; verdict three.

- **Structure:** name the test -> position -> three grounds -> two objections with replies -> residual -> conditional verdict.
- **Doctrine:** pluralism; earned allegiance; the state as one association among many.
- **Evidence:** the association list; the three grounds; MacIver's coordination role.
- **Distinction:** pluralist against anarchist; conceptual challenge against administrative decentralisation.
- **Criticism:** the coordination debt, stated as an unpaid debt rather than argued away.

Solved PYQ 3 · 2019 · Q3(a) · 20 marks

Question: Discuss how far does Austin's concept of sovereignty go along with Kautilya's concept of sovereignty.

Demand decoding

Element	Requirement
Directive	"How far ... go along with" - a degree judgement on fixed comparison axes
Core issue	Whether two theories answering different questions can be said to agree at all
Scope boundary	Twenty marks: five axes run in parallel, then an adjudication; not two mini-essays
Thinker thesis	Austin analyses the form of authority; Kautilya prescribes its function
Non-negotiables	Determinate human superior; <i>saptāṅga</i> , <i>daṇḍanīti</i> , <i>yogakṣema</i> ; the asymmetry verdict

Independent model answer

Thesis. ANALYSIS: The two converge on a single point - that a political order requires an identifiable apex of direction - and diverge on everything that follows, because they are answering different questions: Austin asks what makes a command legally valid, Kautilya asks what makes rule possible.

Axis one - nature of the theory. FACT: Austin's is analytical jurisprudence, separating what law **is** from what it ought to be. Kautilya's is statecraft: administration, treasury, coercion, alliance, intelligence and welfare.

Axis two - locus of sovereignty. FACT: Austin locates it in a **determinate human superior**, habitually obeyed by the bulk of society and habitually obeying no one. Kautilya locates it in the ruler (*svāmī*) as head of a seven-limbed state (*saptāṅga*): ministers, territory with its people, fortified defence, treasury, coercive force and ally. **ANALYSIS:** Austin's sovereign is a person or body; Kautilya's is a **system with a head**.

Axis three - limits. FACT: Austin's sovereign is absolute, indivisible, illimitable and inalienable, with moral limits placed outside the definition. Kautilya's ruler is bound by dharma, prudence, counsel and the duty to security and welfare (*yogakṣema*); a ruler without treasury or ministers holds title without effective sovereignty.

Axis four - law and order. FACT: Austin: law is command backed by sanction. Kautilya: order is maintained through calibrated coercion (*daṇḍanīti*), counsel, treasury and administration - too little force brings disorder, too much brings resentment.

Axis five - the external dimension. FACT: Austin's is underdeveloped, extending only to the denial that international law is truly law. Kautilya's is highly developed through the circle of states (*maṇḍala*) and the six-fold policy (*ṣaḍguṇya*).

Adjudication. ANALYSIS: They "go along" only at the thinnest level of shared structure - an apex of direction - and part company on source, limits, purpose and external relations. **ANALYSIS:** The asymmetry is the answer: **Austin analyses the form of authority; Kautilya prescribes its function**, so Austin's sovereign is legally supreme because no superior commands it, while Kautilya's ruler is politically central but functionally bound by dharma, welfare, ministers, treasury, force and allies.

Why this earns marks

Answer-writing focus: comparison stems are lost by writing two sequential summaries. Fix the axes in advance and run both thinkers down each one; the adjudication then writes itself.

Exam-length execution - 20 marks, about 330 to 400 words: thesis three lines; five axes at four lines each; adjudication four.

- **Structure:** thesis -> five parallel axes -> asymmetry adjudication.
- **Doctrine:** determinate human superior; *saptāṅga*; *daṇḍanīti*; *yogakṣema*; *maṇḍala* and *ṣaḍguṇya*.
- **Evidence:** the seven limbs by name; the five Austinian attributes; the international-law denial.
- **Distinction:** legal source of command against operational anatomy of rule.
- **Criticism:** the anachronism control - Kautilya predates the modern doctrine, so agreement must be graded, never assumed.

Solved PYQ 4 · 2020 · Q1(d) · 10 marks

Question: Explain the importance of Bodin's theory of sovereignty.

Demand decoding

Element	Requirement
Directive	"Explain the importance" - internal logic and historical significance, with light criticism only
Core issue	What Bodin added that political thought did not previously possess
Scope boundary	Ten marks: definition, the state-building move, the limits, one qualification
Thinker thesis	He made authority impersonal and gave the modern state its vocabulary
Non-negotiables	Absolute and perpetual; the law-making mark; the three limits; not Hobbes

Independent model answer

Thesis. ANALYSIS: Bodin's importance is not that he made rulers stronger but that he made authority **impersonal**, supplying modern politics with a language of permanent, undivided public power.

The definition. FACT: Sovereignty is the **absolute and perpetual power of a commonwealth**: *absolute* means subject to no human superior within the commonwealth; *perpetual* means attached to the office rather than to a temporary magistrate. FACT: Its pre-eminent mark is the power to make and unmake law for all subjects in general without the consent of any superior.

Why this mattered. ANALYSIS: Writing amid the French wars of religion, when rival churches, estates and feudal powers each claimed finality, Bodin identified what a community must possess to end its disputes: one authority whose law-making word is last. ANALYSIS: Perpetuity does the state-building work - a power that survives its holder is an institution, and only an institution supplies a continuous procedure of closure.

The limits, which must not be omitted. FACT: He is *legibus solutus* only of ordinary positive law, remaining bound by divine law, natural law and the fundamental laws of the realm (*leges imperii*). FACT: This is why he is **not** simply Hobbes before Hobbes.

Verdict. ANALYSIS: Historically foundational, normatively problematic: he gives later thought its vocabulary - absolute, perpetual, undivided - which Austin radicalises and Laski attacks, but offers weak guarantees against the concentration of power.

Why this earns marks

Answer-writing focus: "importance" invites a history lesson. Resist it: two lines of civil-war context are worth marks, two paragraphs are not, and the marks lie in what the two adjectives accomplish.

Exam-length execution - 10 marks, about 150 to 220 words: thesis two lines; definition three; significance four; limits three; verdict two.

- **Structure:** thesis -> definition -> why it mattered -> the three limits -> graded verdict.
- **Doctrine:** absolute and perpetual power; the pre-eminent law-making mark.
- **Evidence:** the wars of religion; *legibus solutus*; the *leges imperii*.
- **Distinction:** office against magistrate; supremacy in positive law against lawlessness.
- **Criticism:** weak protection against concentration, conceded in the verdict.

Solved PYQ 5 · 2020 · Q4(b) · 15 marks

Question: State and explain the relevance of the doctrine of sovereignty in times of globalization.

Demand decoding

Element	Requirement
Directive	"State and explain the relevance" - a thesis, then a mechanism-by-mechanism explanation
Core issue	Whether interdependence abolishes, or merely reconfigures, final authority
Scope boundary	Fifteen marks: four mechanisms distinguished, four thinkers redeployed, one concession
Thinker thesis	Constraint is not extinction; the mode changes, the question does not
Non-negotiables	Treaty, delegation, pooling, dependence kept apart; the supranational caution

Independent model answer

Thesis. ANALYSIS: Globalisation **modifies** sovereignty without abolishing it: states still claim final authority over territory, law, security and political membership, so the doctrine remains relevant as an account of how that authority is exercised, delegated, pooled and constrained.

Mechanism one - treaty commitment. FACT: A state accepts binding rules through its own recognised treaty-making capacity. **ANALYSIS:** Self-limitation constrains future action without creating a global Austinian sovereign; indeed it **presupposes** the capacity it limits.

Mechanism two - delegation. ANALYSIS: A state authorises an institution to perform a defined adjudicative, administrative or monitoring function. The **exercise** of a competence moves outward while its legal source and limits remain treaty-based.

Mechanism three - pooling. ANALYSIS: States exercise a defined competence jointly through common voting or bargaining rules. Finality becomes **shared for the agreed field**, not universally transferred.

Mechanism four - material dependence. ANALYSIS: Finance, markets, technology or security asymmetry narrows the range of feasible choices. Here legal independence may survive while **effective autonomy declines** - the mechanism that does the most practical damage and involves no legal transfer at all.

The four thinkers redeployed. ANALYSIS: For **Bodin**, external pressure would not negate the need for a final internal authority. For **Austin**, globalisation complicates the idea of an uncommanded superior. For **Laski**, interdependence strengthens the critique of absolute state supremacy. For **Kautilya**, the strategic-relational reading of external sovereignty, through the circle of states, remains directly serviceable.

Caution and verdict. ANALYSIS: Not every international organisation is supranational, and no supranational institution is automatically sovereign in Austin's sense; ask which competence was conferred, by what instrument, with what exit rule, and whether dependence makes formal consent substantively unequal. **ANALYSIS: Sovereignty is illimitable in legal form, limited in political fact and negotiated in international practice** - which is precisely why the doctrine remains relevant rather than obsolete.

Why this earns marks

Answer-writing focus: the whole answer turns on refusing to treat "globalisation" as one thing. Four mechanisms with four different consequences is the structure; the slogan "sovereignty has ended" is what the examiner is testing against.

Exam-length execution - 15 marks, about 250 to 330 words: thesis two lines; four mechanisms at three lines each; redeployment four; caution and verdict four.

- **Structure:** thesis -> four mechanisms -> four thinkers -> caution -> degree verdict.
- **Doctrine:** pooled, negotiated and networked sovereignty.
- **Evidence:** treaty capacity; delegated function; joint voting rules; conditionality.
- **Distinction:** legal source against exercise; shared finality against transfer; legal independence against effective autonomy.
- **Criticism:** the conditionality concession, stated as the strongest case against the thesis.

Solved PYQ 6 · 2021 · Q1(c) · 10 marks

Question: Is Austin's theory of sovereignty compatible with democracy? Discuss.

Demand decoding

Element	Requirement
Directive	"Is ... ? Discuss" - a graded verdict with the level of each judgement named
Core issue	Whether determinacy and illimitability survive democratic accountability
Scope boundary	Ten marks: the two-level structure, one Indian illustration, one caution
Thinker thesis	Compatible in legal form, incompatible in constitutional substance
Non-negotiables	Determinate human superior; the indeterminacy of "the people"; jurisdiction control

Independent model answer

Thesis. ANALYSIS: Only partially, and the answer must be given at two levels: compatible in the narrow legal sense that a law-making body can always be named, incompatible in the deeper constitutional-political sense.

The theory. FACT: Austin's sovereign is a **determinate human superior**, habitually obeyed by the bulk of society and habitually obeying no one, and is absolute, indivisible, illimitable and inalienable.

Where compatibility holds. FACT: Every democracy contains an identifiable legislature, so at the level of legal form the Austinian can point to a determinate law-maker.

Where it fails. ANALYSIS: Democracy disperses authority through elections, rights, representation, opposition and constitutional limitation; it makes final authority **derivative, revisable and answerable**, whereas Austin's is legally supreme and obeys no one. ANALYSIS: Popular sovereignty sharpens the difficulty: "the people" are indeterminate, changing and institutionally mediated, so either the sovereign is not the people or the sovereign is not determinate.

Illustration, handled carefully. FACT: In India, Parliament exercises amendment power conferred by Article 368 of a supreme written Constitution, and *Kesavananda Bharati* (Supreme Court judgment, **1973**) holds that this power does not extend to altering the basic structure. ANALYSIS: This is a dated judicial decision illustrating a legally limited amending competence; it is not philosophical proof, and no Indian institution should be called "the Austinian sovereign".

Verdict. ANALYSIS: The **function** of final legal authority survives in a democracy; Austin's **account** of it does not.

Why this earns marks

Answer-writing focus: a flat yes or no forfeits the structural mark. Name the level at which each verdict holds, and the examiner sees a graded judgement rather than an opinion.

Exam-length execution - 10 marks, about 150 to 220 words: thesis two lines; theory two; compatibility one; failure four; illustration three; verdict two.

- **Structure:** two-level thesis -> the theory -> holds here -> fails there -> illustration -> verdict.
- **Doctrine:** determinate human superior; illimitability; popular sovereignty as the counter-thesis.
- **Evidence:** Article 368; *Kesavananda Bharati* (1973).
- **Distinction:** legal form against constitutional substance; function against account.
- **Criticism:** the legal-status caution attached to the Indian illustration.

Solved PYQ 7 · 2021 · Q3(c) · 15 marks

Question: Discuss Kautilya's contribution regarding the concept of sovereignty. Is it applicable in a democratic form of government? Explain.

Demand decoding

Element	Requirement
Directive	Two-part stem: "Discuss ... contribution" then "Is it applicable ... ? Explain"
Core issue	Which elements are form-bound and which are principles of statecraft
Scope boundary	Fifteen marks: contribution in four moves, applicability by selective appropriation
Thinker thesis	Strong but duty-bound authority; principles transferable, monarchical form not
Non-negotiables	<i>Saptāṅga</i> , <i>daṇḍanīti</i> , <i>maṇḍala/śāḍgunya</i> , <i>yogakṣema</i> ; the selectivity rule

Independent model answer

Thesis. ANALYSIS: Kautilya's contribution is a theory of authority that is strong **because** duty-bound; its monarchical form is untransferable, but its principles of statecraft are directly applicable to democratic government.

Contribution one - sovereignty as systemic. FACT: The state is an organism of seven limbs (*saptāṅga*): ruler (*svāmī*), ministers (*amātya*), territory with its people (*janapada*), fortified defence (*durga*), treasury (*kośa*), coercive force (*daṇḍa*) and ally (*mitra*). ANALYSIS: A ruler without treasury or ministers holds title without effective sovereignty, so authority is a property of the whole organism.

Contribution two - calibrated coercion. FACT: *Daṇḍanīti* makes the capacity to punish constitutive of rule and its **proportion** the test of good rule: too little brings disorder, too much resentment.

Contribution three - external sovereignty. FACT: The circle of states (*maṇḍala*) and the six-fold policy (*śāḍgunya*) - peace, war, marching, remaining poised, seeking shelter, dual policy - make alignment positional and policy responsive.

Contribution four - welfare as legitimacy. FACT: Security and welfare (*yogakṣema*) tie the ruler's welfare to the people's; durability depends on prosperity, security and justice in administration. ANALYSIS: This is what moves Kautilya beyond pure force theory.

Applicability - the selectivity rule. ANALYSIS: What is not transferable is the monarchical form. What is transferable is institutional interdependence, prudent and proportionate use of force, treasury discipline, strategic diplomacy and welfare-centred governance. FACT: Democratic applicability lies in principles of statecraft, not in reproducing kingship.

Objection and reply. CAUTION: A democratic order cannot borrow from monarchical realism without undermining liberty. ANALYSIS: The reply is **selective appropriation**: retain strategic realism, administrative discipline and welfare orientation while rejecting monarchical absolutism.

Verdict. ANALYSIS: Applicable in principle, not in form - and the caveat matters: prudential statecraft is not consent-based legitimacy, so welfare in Kautilya is a condition of durable rule rather than a right held by subjects.

Why this earns marks

Answer-writing focus: two-part stems are lost by answering only the first part well. Allocate roughly two-thirds to the contribution and one-third to a genuinely argued applicability verdict.

Exam-length execution - 15 marks, about 250 to 330 words: thesis two lines; four contributions at three lines each; applicability four; objection-reply two; verdict two.

- **Structure:** thesis -> four contributions -> selectivity rule -> objection and reply -> qualified verdict.
- **Doctrine:** *saptāṅga*, *daṇḍanīti*, *maṇḍala*, *śāḍgunya*, *yogakṣema*.
- **Evidence:** the seven limbs and six measures by name; title without treasury.
- **Distinction:** form against principle; prudential duty against consent-based right.
- **Criticism:** the caveat that welfare is a condition of rule rather than an enforceable claim.

Solved PYQ 8 · 2022 · Q2(a) · 20 marks

Question: What arguments does Bodin present to contend that sovereignty must be absolute, perpetual and undivided? Is Bodin's conception of sovereignty compatible with the social and political ideals of equality, justice and liberty? Critically discuss.

Demand decoding

Element	Requirement
Directive	Two-part stem ending in "Critically discuss" - arguments first, then a criterion-based compatibility verdict
Core issue	Whether an authority defined as having no human superior can secure three modern ideals
Scope boundary	Twenty marks: three arguments, three ideals tested separately, one graded verdict
Thinker thesis	Historically foundational, normatively problematic
Non-negotiables	Each adjective argued, not asserted; the three limits; the ideals used as a test , not expounded

Independent model answer

Thesis. ANALYSIS: Bodin's three arguments are internally coherent, but compatibility with equality, justice and liberty is **conditional at best**: his theory can deliver impartial law and public order while offering weak guarantees against the concentration of power.

Argument for absoluteness. FACT: Law requires a source not itself legally derivative from another earthly authority; the sovereign's pre-eminent mark is the power to make and unmake law for all subjects without a superior's consent. **ANALYSIS:** *Absolute* therefore denies a superior **law-maker**, not a superior **norm**.

Argument for perpetuity. FACT: Sovereignty attaches to the office rather than to a temporary magistrate or delegated official. **ANALYSIS:** A power that dies with its holder is a personal ascendancy; only one that survives its holder is a state capable of continuous closure.

Argument for undividedness. ANALYSIS: If two authorities are each final, conflict becomes insoluble and the civil disorder of the wars of religion returns. **FACT:** Division of governmental **functions** is permitted - advisory estates, subordinate courts - but division of sovereign **title** is not.

The limits that qualify all three. FACT: He is *legibus solutus* only of ordinary positive law, and remains bound by divine law, natural law and the fundamental laws of the realm (*leges imperii*); arbitrary confiscation of property is discussed as incompatible with his own framework.

Testing against equality. ANALYSIS: A single impartial law-giver can dissolve feudal and confessional privilege, which serves equality before the law; but nothing in the theory requires equal civic standing, and the sovereign is the judge of his own compliance.

Testing against justice. ANALYSIS: Divine and natural law supply a normative standard, so the sovereign is not morally empty; **FACT:** yet no institution is empowered to enforce that standard against him, so the limits are conceptually real and practically thin.

Testing against liberty. ANALYSIS: Order is a condition of liberty, and Bodin secures it; but an authority with no human superior within the commonwealth gives liberty no institutional guarantee, which is exactly Laski's objection that absolute sovereignty is politically dangerous.

Graded verdict. ANALYSIS: **Historically foundational, normatively problematic.** Bodin makes the modern state possible and modern constitutional protection necessary; the compatibility is partial, conditional and unenforced.

Why this earns marks

Answer-writing focus: the second half is where scripts collapse into "both are important". Test the three ideals **separately**, and let each test yield a different partial result; the verdict is then earned rather than announced.

Exam-length execution - 20 marks, about 330 to 400 words: thesis three lines; three arguments at three lines each; limits three; three tests at three lines each; verdict three.

- **Structure:** thesis -> three arguments -> the limits -> three separate tests -> graded verdict.

- **Doctrine:** absolute, perpetual, undivided; *legibus solutus*; *leges imperii*.
- **Evidence:** the law-making mark; advisory estates and subordinate courts; arbitrary confiscation.
- **Distinction:** superior law-maker against superior norm; functions against title.
- **Criticism:** unenforceable higher-law limits, conceded as the theory's permanent vulnerability.

Solved PYQ 9 · 2023 · Q2(a) · 20 marks

Question: Elucidate why the absolute nature of sovereignty was rejected by Laski.

Demand decoding

Element	Requirement
Directive	"Elucidate why" - the internal logic of the rejection, expounded rather than merely listed
Core issue	The three independent grounds and what each rules out
Scope boundary	Twenty marks: three grounds developed, targets named, positive proposal, one residual
Thinker thesis	Absolutism is false, dangerous and unrealistic - three claims of three kinds
Non-negotiables	Pluralist not anarchist; not decentralisation; the coordination debt

Independent model answer

Thesis. ANALYSIS: Laski rejects absolute sovereignty on three logically independent grounds - philosophical, political and sociological - and the independence is what makes the rejection difficult to answer.

Ground one - philosophically false. FACT: No human institution is entitled to unlimited moral obedience.

ANALYSIS: Obligation is generated wherever human purposes are pursued in common, so a claim that all obligation derives from one will is not merely severe but mistaken about the source of obligation itself.

Ground two - politically dangerous. FACT: Absolute sovereignty legitimises tyranny and suppresses liberty.

ANALYSIS: If the state is the sole final authority, dissenting associations, minority rights, local autonomies and moral conscience can all be overridden in the name of public supremacy; pluralism is therefore a doctrine of **liberty** as much as of sociology.

Ground three - sociologically unrealistic. FACT: Real societies distribute power among many groups and institutions. Individuals belong to family, church, union, guild, cooperative, profession and locality, and these bodies command real loyalty; associations are not permissions granted by sovereignty but **real sites of personality, cooperation and authority**.

The two targets. ANALYSIS: He attacks both the legal abstraction of Austin - the determinate superior whose command exhausts law - and the absolutist impulse inherited from Bodin.

The positive proposal. FACT: Sovereignty in the monistic sense should give way to a distributed structure of authority: modern society is functionally differentiated, so economic, cultural, educational, local and religious life cannot be governed by one centralised will. **FACT:** The state must **compete for allegiance** by protecting rights, securing welfare and enabling meaningful life; authority is functional and moral, not mystical.

Two controls. FACT: Laski is a **pluralist, not an anarchist**: the state retains coordinating and coercive capacities. **FACT:** His claim is **not administrative decentralisation** but a challenge to the idea that one final unlimited will exists at all. **ANALYSIS:** Note also the phase caution - early Laski called sovereignty a legal fiction; the mature Laski conceded its importance while denying omnipotence.

Objection, reply, residual. FACT: Objection: without a final sovereign, conflict between associations is insoluble. **ANALYSIS:** Reply: legal finality does not eliminate conflict but often suppresses legitimate diversity, and what is needed is a final **procedure**, not an unanswerable will. **ANALYSIS:** Residual: emergencies, defence and redistribution still require an integrating authority, and MacIver's residual coordinating role concedes it.

Verdict. ANALYSIS: Laski's corrective against absolutism is indispensable; a polity that can never speak with one voice cannot discharge the coordinating task that made sovereignty necessary in the first place.

Why this earns marks

Answer-writing focus: the stem says *why*, so the three grounds must be **developed** rather than listed, and the mark for critical control comes from conceding the coordination debt in the verdict.

Exam-length execution - 20 marks, about 330 to 400 words: thesis two lines; three grounds at four lines each; targets two; proposal four; controls three; objection-reply-residual three; verdict two.

- **Structure:** thesis -> three grounds -> targets -> positive proposal -> two controls -> objection, reply, residual -> verdict.
- **Doctrine:** pluralism; distributed authority; earned allegiance.
- **Evidence:** the association list; the two targets; MacIver's coordination role.
- **Distinction:** pluralist against anarchist; conceptual challenge against decentralisation.
- **Criticism:** the unpaid coordination debt, named in the verdict.

Solved PYQ 10 · 2024 · Q4(b) · 15 marks

Question: What insights does the Arthashastra offer with regard to the concept of sovereignty? Does it have any relevance in the modern times? Critically discuss.

Demand decoding

Element	Requirement
Directive	Two-part stem ending in "Critically discuss" - insights, then a graded relevance judgement
Core issue	Whether an ancient science of statecraft can inform a modern constitutional order
Scope boundary	Fifteen marks: four insights, then relevance argued through themes rather than transposition
Thinker thesis	It refuses the false choice between moralism and realism
Non-negotiables	All four insights, not just strategy; the anachronism control in the verdict

Independent model answer

Thesis. ANALYSIS: The *Arthaśāstra*'s central insight is that sovereignty is **systemic, coercive, strategic and welfare-conditioned at once**, and its modern relevance lies in that refusal of the false choice between moralism and realism.

Insight one - the state as organism. FACT: Seven interdependent limbs (*saptāṅga*): ruler (*svāmī*), ministers (*amātya*), territory with its people (*janapada*), fortified defence (*durga*), treasury (*kośa*), coercive force (*daṇḍa*), ally (*mitra*). **ANALYSIS:** Sovereignty is therefore not merely personal; a ruler without treasury or ministers holds title without effective authority.

Insight two - coercion as constitutive and calibrated. FACT: *Daṇḍanīti* makes enforcement a permanent structural feature of rule while making its proportion the test of good rule.

Insight three - external sovereignty as relational. FACT: The circle of states (*maṇḍala*) and the six-fold policy (*śāḍgunya*) treat alignment as positional and policy as responsive to relative power and interest.

Insight four - welfare as the ground of durability. FACT: Security and welfare (*yogakṣema*) tie the ruler's welfare to the people's; treasury, territory and administration are conditions of stable rule, not merely instruments of extraction.

Relevance - argued through themes. ANALYSIS: Modern relevance lies in institutional capacity, security, diplomacy and public welfare taken together: sovereignty involves administration, intelligence, fiscal strength, external balancing and legitimacy through welfare. **ANALYSIS:** The transferable elements are principles of statecraft; the untransferable element is the monarchical form.

Objection and reply. CAUTION: Ancient categories cannot speak to modern constitutional states. **ANALYSIS:** Direct transposition is indeed impossible, but conceptual adaptation is fruitful, and relevance is shown through themes rather than by pretending ancient monarchy equals modern democracy.

Critical verdict. ANALYSIS: Genuinely relevant, but with two limits stated: prudential statecraft is not consent-based legitimacy, and welfare here is a condition of durable rule rather than a right held by subjects. CAUTION: The realism is elastic enough to license much, which is why the welfare and dharma constraints must be read as integral rather than decorative.

Why this earns marks

Answer-writing focus: most scripts give the circle of states and stop. Four insights, in the order organism -> coercion -> strategy -> welfare, cover the doctrine and set up a relevance judgement that is argued rather than asserted.

Exam-length execution - 15 marks, about 250 to 330 words: thesis two lines; four insights at three lines each; relevance four; objection-reply two; verdict three.

- **Structure:** thesis -> four insights -> thematic relevance -> objection and reply -> critical verdict.
- **Doctrine:** *saptāṅga*, *daṇḍanīti*, *maṇḍala*, *śāḍgunya*, *yogakṣema*.
- **Evidence:** the seven limbs and six measures by name; treasury as a condition of rule.
- **Distinction:** conceptual adaptation against direct transposition.
- **Criticism:** elastic realism and the absence of consent-based legitimacy, both conceded.

Solved PYQ 11 · 2025 · Q2(c) · 15 marks

Question: 'There is no permanent friend or permanent enemy.' Discuss this statement in the light of Kautilya's view on Sovereignty.

Demand decoding

Element	Requirement
Directive	Quoted-line comment - locate the line in its doctrine before judging it
Core issue	Whether the conditionality of alliance follows from Kautilya's model
Scope boundary	Fifteen marks: provenance control first, then <i>maṇḍala</i> and <i>śāḍgunya</i> , then the internal counterweight
Thinker thesis	Alignment is positional, so permanence is conceptually unavailable
Non-negotiables	The line is prompt wording, not verified authorship; strategy balanced by welfare

Independent model answer

Provenance first. ANALYSIS: The printed line is the **examiner's framing**. Its exact wording has not been verified in the local *Arthaśāstra* synopsis or in the checked Shamasastri source passages, so it should not be presented as a Kautilyan quotation. What can be shown is that the verified doctrines make alliances conditional and policy responsive.

Thesis. ANALYSIS: On Kautilya's model, friendship and enmity are **positional rather than personal**, so the conditionality the line asserts follows from the structure of interstate relations and needs no quotation to establish it.

The circle of states. FACT: The *maṇḍala* framework locates friends and enemies **relationally** within a competitive and unstable states-system, in which position rather than sentiment fixes alignment.

The six-fold policy. FACT: *Śāḍgunya* supplies the gears: **sandhi** (peace or treaty), **vigraha** (hostility or war), **yāna** (marching or expedition), **āsana** (remaining poised), **saṁśraya** (seeking shelter or alliance) and **dvaiddhībhāva** (dual policy). ANALYSIS: Policy therefore changes with circumstance, relative power and interest - a thesis of **strategic flexibility**, not a verbatim maxim.

Why permanence is unavailable. ANALYSIS: If alignment is defined by relative position, then a state that gains or loses power changes position, and a change of position changes which measure is prudent. Conditionality falls out of the model rather than being asserted about it.

The internal counterweight. FACT: External flexibility is not amorality. Sovereignty is also bound internally by the seven limbs (*saptāṅga*), by calibrated coercion (*daṇḍanīti*) and by the duty to security and welfare (*yogakṣema*). ANALYSIS: Kautilya is realistic but not normless.

Objection and reply. FACT: Objection: such realism is cynical. ANALYSIS: Reply: strategic flexibility operates alongside the ruler's internal duty toward order and welfare, and misrule weakens sovereignty itself.

Verdict. ANALYSIS: The statement is a fair **interpretation** of Kautilya's external sovereignty and a poor summary of his theory as a whole: it captures the *maṇḍala* logic exactly and omits the welfare-bound, organismic account of internal authority that gives that logic its purpose.

Why this earns marks

Answer-writing focus: quoted-line stems are lost by treating the quotation as self-explanatory. Locate it in the doctrine, state what it does and does not assert, and only then judge it.

Exam-length execution - 15 marks, about 250 to 330 words: provenance two lines; thesis two; *maṇḍala* two; six measures four; permanence three; counterweight three; objection-reply two; verdict two.

- **Structure:** provenance control -> thesis -> circle of states -> six measures -> why permanence is unavailable -> internal counterweight -> verdict.
- **Doctrine:** *maṇḍala*; *śāḍgunya*; *saptāṅga*; *yogakṣema*.
- **Evidence:** the six measures by name; the relational definition of friend and enemy.
- **Distinction:** positional against personal alignment; interpretation against authorship.
- **Criticism:** the line's incompleteness as a summary of the whole theory, stated in the verdict.

Six original questions in the style of the paper - two each at 10, 15 and 20 marks - covering the parts of the clause that the 2018-2025 corpus has not yet examined directly: the legal/political distinction, the de jure and de facto pairs, the classical attributes and their qualifications, the internal repairs of Austin by Kelsen and Hart, the pluralist lineage behind Laski, and the four-way structure of the whole dispute. Every model answer is independent learner practice and is never an official key.

ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS

Original 1 · 10 marks

Question: Distinguish legal from political sovereignty, and explain why the distinction matters for evaluating Austin.

Independent model answer

Thesis. FACT: The two answer different questions - who is **competent to make law**, and what power **shapes or compels** the law-maker - and the distinction matters because most objections to Austin are answers to the second offered against a thesis about the first.

Legal sovereignty. FACT: It names the authority recognised by law as competent to make law: the juristic source of validity, and Austin's preferred angle. His sovereign is a determinate human superior, habitually obeyed by the bulk of society and habitually obeying no one.

Political sovereignty. FACT: It names the actual power behind legal institutions - the force that can compel or shape the legal sovereign. Parties, public opinion, organised interests, military power, religion and economic classes belong here, and this is the standpoint from which Laski attacks.

Why they diverge. ANALYSIS: A constitution may vest law-making power in one body while something else determines what that body can actually do; the divergence is a general feature of political life rather than a constitutional defect.

Why it matters for Austin. ANALYSIS: An unlabelled objection commits a category error. Showing that a legislature is politically constrained does not refute a claim about legal competence; showing that power-conferring rules cannot be redescribed as commands does.

Verdict. ANALYSIS: Austin overstates the sufficiency of legal validity and pluralists overstate the sufficiency of political efficacy; a balanced answer keeps both questions open rather than declaring one of them the real one.

Why this earns marks

Answer-writing focus: two definitions earn little; two definitions plus the diagnosis of a category error earn the question.

- **Structure:** thesis -> legal -> political -> divergence -> consequence for Austin -> verdict.
- **Doctrine:** juristic source of valid law against the real locus of social power.
- **Evidence:** the determinate human superior; the list of political forces.
- **Distinction:** validity against efficacy.
- **Criticism:** the symmetrical overstatement of both camps, named in the verdict.

Original 2 · 10 marks

Question: Explain the five classical attributes of sovereignty, and show why each requires a qualification.

Independent model answer

Thesis. FACT: The five attributes are defensible only in qualified form; stated flat, each is refuted by the first counter-example a critic supplies.

Absoluteness. FACT: No superior human law-maker legally commands the sovereign within the political order. ANALYSIS: Qualification: legal non-subordination does not prove moral infallibility or practical omnipotence.

Permanence or continuity. FACT: Governments and office-holders change while sovereignty continues with the state. ANALYSIS: Qualification: permanence means continuity while the state remains independent, not literal eternity.

Universality. FACT: Sovereign jurisdiction extends in principle across persons and associations within the territory. ANALYSIS: Qualification: immunities and autonomous spheres may exist by constitutional or legal recognition.

Inalienability. FACT: Sovereignty cannot be transferred away without the old state losing that status. ANALYSIS: Qualification: delegation, devolution or treaty commitment is not automatically alienation.

Indivisibility. FACT: The classical theory requires one final legal source. ANALYSIS: Qualification: governmental competences may be distributed even where monists insist legal finality remains one.

Placement and verdict. FACT: Bodin supplies the defining pair *absolute and perpetual*; Austin supplies the sharpest determinate-superior formulation; the five-part list is a **consolidation** of that monist tradition rather than five claims uniquely invented by either. ANALYSIS: Qualified in this way, the list survives federal division and treaty commitment; unqualified, it does not.

Why this earns marks

Answer-writing focus: the qualification column is the answer. A candidate who writes only the five definitions has written a glossary.

- **Structure:** thesis -> five attributes each with its qualification -> placement -> verdict.
- **Doctrine:** the classical monist taxonomy of legal sovereignty.
- **Evidence:** Bodin's defining pair; Austin's sharpened list.
- **Distinction:** legal non-subordination against moral infallibility; delegation against alienation.
- **Criticism:** the vulnerability of the unqualified list, stated as the reason for qualifying it.

Original 3 · 15 marks

Question: Examine the claim that Kelsen and Hart refute Austin more effectively than Laski does.

Independent model answer

Thesis. ANALYSIS: The claim is largely correct but must be graded: Kelsen and Hart defeat Austin's **definition**, whereas Laski defeats its **application** - and only the first is a refutation in the strict sense.

Austin's position. FACT: Law is the command of a determinate human superior backed by sanction; sovereignty is determinate, absolute, indivisible, illimitable and inalienable.

Laski's external attack. FACT: The state is one association among many; absolute sovereignty is philosophically false, politically dangerous and sociologically unrealistic. ANALYSIS: This shows that no actual society matches the Austinian picture, but it does not show that the picture is internally incoherent, and Austin can reply that he is analysing legal validity rather than describing social power.

Kelsen's internal repair. FACT: Validity derives from a higher norm, never from a fact, terminating in a presupposed basic norm (*Grundnorm*) - *General Theory of Law and State*, first English edition **1945**. ANALYSIS: This dissolves the personal sovereign from within positivism and answers the succession and persistence problems that habit cannot explain.

Hart's internal repair. FACT: Law is a union of primary and secondary rules, with a rule of recognition existing as convergent official practice viewed from the internal point of view - *The Concept of Law*, **1961**. ANALYSIS: Nullity is not a sanction, and being obliged is not having an obligation; both strikes attack the definition rather than its fit.

Adjudication. ANALYSIS: Refutation of a definition is stronger than refutation of a description, so the claim holds. ANALYSIS: But Laski's attack survives the repairs: neither Kelsen nor Hart addresses the danger of unlimited authority or the plurality of allegiance, so the three are complementary rather than competitive.

Control. ANALYSIS: They must not be merged: Kelsen replaces the sovereign with a norm-hierarchy, Hart with an official practice, Laski with plural associations.

Verdict. ANALYSIS: Kelsen and Hart refute Austin **as a theory of law**; Laski refutes him **as a theory of political authority** - and a complete answer runs the internal critique first and the external critique second.

Why this earns marks

Answer-writing focus: "more effectively" demands a criterion of effectiveness. Supplying one - definition against application - converts an opinion into an argument.

- **Structure:** graded thesis -> Austin -> external attack -> two internal repairs -> adjudication -> control -> verdict.
- **Doctrine:** command theory; hierarchy of norms; primary and secondary rules; pluralism.
- **Evidence:** Kelsen 1945; Hart 1961; the nullity strike; the three grounds of rejection.
- **Distinction:** internal against external critique; definition against application.
- **Criticism:** the warning against merging three incompatible replacements.

Original 4 · 15 marks

Question: Assess the significance of the pluralist lineage - Figgis, Cole and MacIver - for Laski's rejection of monistic sovereignty.

Independent model answer

Thesis. ANALYSIS: The lineage strengthens Laski's rejection empirically and supplies the concession his own account most needs, but it must locate the school rather than replace the printed thinker.

Laski's position. FACT: The state is one association among many. Individuals belong to family, church, union, guild, cooperative, profession and locality, and these bodies command real loyalty; associations are not permissions granted by sovereignty.

Figgis. FACT: Churches and other real associations expose the danger of an absolute state allied with economic concentration. ANALYSIS: His significance is as the group-personality and anti-absorption precursor: he shows that associations have purposes of their own that the state did not create.

Cole. FACT: A forerunner of pluralism associated with functional or guild representation and socially organised group life. ANALYSIS: Significance: he converts plural loyalty into a proposal about representation. The boundary matters - the answer must not become a theory of guild socialism.

MacIver. FACT: Law and constitution, not a mysterious sovereign will, ground legitimate public force; the state **coordinates** associations without creating all their purposes. ANALYSIS: Significance: this is both the strongest sociological supplement to Laski and the honest statement of what pluralism still owes to monism.

Assessment. ANALYSIS: Figgis supplies the moral urgency, Cole the institutional imagination and MacIver the residual coordination role. ANALYSIS: The last is decisive: because someone must settle conflicts **between** associations, MacIver's coordination claim measures exactly how much of the monist case survives.

Control and verdict. FACT: Laski is the printed thinker and the marks follow him; the three names locate the school. ANALYSIS: The lineage therefore makes the rejection of monism harder to dismiss as one writer's preference, while making explicit that pluralism limits sovereignty rather than abolishing the function it names.

Why this earns marks

Answer-writing focus: the risk here is a biography parade. Give each name **one** supported contribution and **one** boundary, then assess the lineage as a whole.

- **Structure:** thesis -> Laski's position -> three names with contribution and boundary -> assessment -> control and verdict.
- **Doctrine:** associational autonomy; group personality; coordination without absolutism.
- **Evidence:** the association list; MacIver's law-and-constitution argument.
- **Distinction:** locating a school against replacing the printed thinker.
- **Criticism:** the residual coordination role, treated as the measure of what monism retains.

Original 5 · 20 marks

Question: "The concept of supreme legal authority survives every criticism examined; the image of a determinate personal sovereign does not." Critically examine this verdict with reference to Bodin, Austin, Laski and Kautilya.

Independent model answer

Thesis. ANALYSIS: The verdict is sound but requires two amendments: the surviving concept is **final procedure** rather than final will, and Kautilya shows that a duty-bound personal head can survive where an illimitable one cannot.

What the image asserts. FACT: Bodin's sovereign is the absolute and perpetual power of a commonwealth; Austin's is a determinate human superior, habitually obeyed by the bulk and obeying no one, whose authority is absolute, indivisible, illimitable and inalienable.

The internal criticisms. FACT: Austin cannot explain succession, persistence or power-conferring rules. **ANALYSIS:** Kelsen (*General Theory of Law and State*, English edition **1945**) replaces the commander with a hierarchy of norms terminating in a presupposed basic norm; Hart (*The Concept of Law*, **1961**) replaces him with a union of primary and secondary rules resting on a rule of recognition accepted from the internal point of view. **ANALYSIS:** Both remain positivists: the image dissolves, the concept of ultimate validity does not.

The external criticisms. FACT: Federalism distributes competence; international law binds without a world sovereign; custom precedes command; democracy makes authority derivative and answerable. **FACT:** Laski adds that absolutism is philosophically false, politically dangerous and sociologically unrealistic. **ANALYSIS:** Each attacks the personal image; none shows that a legal order can dispense with an ultimate criterion of validity.

What Bodin retains. ANALYSIS: Bodin survives better than Austin because his sovereign is already limited by divine law, natural law and the fundamental laws of the realm, and because perpetuity locates authority in an **office**. His weakness is enforcement, not conception.

What Kautilya adds. ANALYSIS: The seven-limbed state makes sovereignty systemic; calibrated coercion makes force proportionate; security and welfare make legitimacy conditional on outcomes. **ANALYSIS:** A head bound by dharma, counsel, treasury and welfare is not the illimitable superior the criticisms destroy, which is why Kautilya is the least damaged of the four.

The amendments. ANALYSIS: First, what survives is best described as a **final procedure** for closure rather than a final will, since Hart's rule of recognition and a constitutional amending procedure both perform closure without personal supremacy. **ANALYSIS:** Second, the three dissolutions must not be merged: a norm-hierarchy, an official practice and a plurality of associations are rivals, not allies.

Verdict. ANALYSIS: The quoted verdict holds. The image of a determinate personal sovereign fails on succession, on facilities, on federal competence, on international normativity and on democratic accountability; the concept of supreme legal authority survives, reconstituted as procedure, and Kautilya's duty-bound headship survives alongside it because it never claimed illimitability in the first place.

Why this earns marks

Answer-writing focus: examining a quoted verdict requires the candidate to **amend** rather than merely endorse. Two precise amendments are worth more than three paragraphs of agreement.

- **Structure:** graded thesis -> the image -> internal criticisms -> external criticisms -> what Bodin retains -> what Kautilya adds -> two amendments -> verdict.

- **Doctrine:** the five attributes; hierarchy of norms; rule of recognition; pluralism; *saptāṅga* and *yogakṣema*.
- **Evidence:** Kelsen 1945; Hart 1961; the *leges imperii*; the seven limbs.
- **Distinction:** image against concept; final will against final procedure.
- **Criticism:** the warning against merging the three dissolutions, and the enforcement gap in Bodin.

Original 6 · 20 marks

Question: Critically examine the claim that the four printed thinkers on sovereignty are answering four different questions rather than giving four answers to one.

Independent model answer

Thesis. ANALYSIS: The claim is largely true and analytically productive, but it must be qualified: the four questions overlap at one point - every position must say what makes closure possible - and it is that overlap which makes comparison legitimate.

The four questions. ANALYSIS: Bodin and Austin ask **who** is sovereign. Kelsen and Hart deny that this is the right question and ask **what makes a norm valid**. Laski denies that any single answer is possible and asks **how allegiance is actually distributed**. Kautilya asks what the holder of authority is **for**.

Bodin and Austin - the "who" question. FACT: Bodin answers: the commonwealth's supreme law-giving authority, absolute and perpetual, limited by divine law, natural law and the fundamental laws of the realm. **FACT:** Austin answers: a determinate human superior, habitually obeyed by the bulk of society, whose authority is illimitable within the legal order.

Kelsen and Hart - the validity question. ANALYSIS: Because "is" does not yield "ought", validity cannot rest on the fact of obedience; Kelsen derives it from a hierarchy of norms terminating in a presupposed basic norm (**1945**), and Hart from a rule of recognition existing as convergent official practice (**1961**).

Laski - the allegiance question. FACT: The state is one association among many and must compete for allegiance by protecting rights, securing welfare and enabling meaningful life; monistic sovereignty misdescribes society and licenses domination.

Kautilya - the purpose question. FACT: The ruler heads a seven-limbed state, governs through calibrated coercion, and is measured by security and welfare; authority is justified by what it delivers.

Why the reframing is productive. ANALYSIS: Read as four answers to one question, the positions look like a disagreement of degree about how much authority is too much. Read as four questions, each exposes a blind spot in the others: Austin cannot see facilities, Kelsen and Hart cannot see danger, Laski cannot see emergency closure, and Kautilya cannot see consent.

The qualification. ANALYSIS: The questions are not wholly independent. Every position must explain how a political community reaches closure, and each does: Bodin through an undivided title, Austin through a determinate superior, Kelsen through a presupposed apex, Hart through an accepted criterion, Laski through a final procedure, Kautilya through a duty-bound head. **ANALYSIS:** Comparison is therefore legitimate on that axis and illegitimate on axes the thinkers do not share.

Verdict. ANALYSIS: The claim should be accepted with that amendment: four questions, one shared problem. The corresponding examination discipline is to **fix the axes** - source, location, divisibility, legal and moral limits, organs of state and modern relevance - and to refuse comparison by biography or by chronology.

Why this earns marks

Answer-writing focus: a "critically examine" stem asking about a methodological claim is won by amending the claim precisely, not by illustrating it at length.

- **Structure:** qualified thesis -> the four questions -> each answered -> why the reframing helps -> the shared-problem qualification -> verdict with the axis discipline.
- **Doctrine:** all four printed positions plus the two internal repairs.
- **Evidence:** the *leges imperii*; the determinate superior; Kelsen 1945 and Hart 1961; the seven limbs.
- **Distinction:** four questions against four answers; shared closure problem against unshared axes.
- **Criticism:** the blind-spot audit, which prevents the reframing from becoming an excuse for not comparing.